

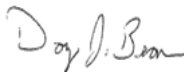


To the Honorable Council  
City of Norfolk, Virginia

September 23, 2025

**From:** Robert J Tajan  
Planning Director

**Subject:** City Planning Commission-Zoning  
Text Amendment

**Reviewed:**   
Douglas Beaver, Deputy City Manager

**Ward/Superward:** Citywide

**Approved:**   
Patrick Roberts, City Manager

**Item Number:** PH-01

- I. **Staff Recommendation:** Approval.
- II. **Planning Commission Recommendation:** By a vote of **6 to 0**, the Planning Commission recommends **Approval**.
- III. **Request:** Text amendments to modify the performance standards for accessory dwelling units and modify requirements that were put in place at the adoption of the 2018 Zoning Ordinance.
- IV. **Applicant:** City Planning Commission
- V. **Description:**
  - An accessory dwelling unit is defined as a secondary dwelling unit established in conjunction with and clearly subordinate to a principal dwelling unit, whether part of the same structure as the principal dwelling unit, or as a detached structure on the same lot, which has a separate kitchen, bathroom, and sleeping area.
  - The performance standards adopted in 2018 were conservative to align with similar uses that were permitted by state law (Temporary Health Care Structure).
  - Accessory dwelling units allow homeowners a range of benefits, such as being able to age in place or earn additional income while increasing the size of Norfolk's deficient housing stock. Many of these units are often more affordable than other traditional housing types.
  - The proposed changes would not allow accessory dwellings units anywhere they are currently not permitted but would provide a by-right option in zoning districts where the use is currently only permitted with a CUP and would provide more flexibility in general.
  - The proposed changes include increasing the maximum size of ADUs to 50% of the square footage of the principal dwelling (with a cap at 800 square feet) and removing the surplus parking requirement.

*Staff contact: Austin Peters at (757) 805-2238, [austin.peters@norfolk.gov](mailto:austin.peters@norfolk.gov).*

Attachments:

- Staff Report to CPC dated March 27, 2025
- Ordinance

## **Proponents and Opponents**

### **Proponents**

None

### **Opponents**

None

### **Supporting Material:**

- Ordinance Exhibits (A-B) (PDF)
- Proposed Text (DOCX)

## City Planning Commission Public Hearing: March 27, 2025

Executive Secretary: Robert Tajan, AICP

Staff Planner: Austin Peters

| Staff Report |                          | Item No                                                                                                                   |
|--------------|--------------------------|---------------------------------------------------------------------------------------------------------------------------|
| Applicant    | City Planning Commission |                                                                                                                           |
| Request      | Zoning Text Amendment    | An amendment to the <i>Zoning Ordinance</i> to modify regulations and performance standards for accessory dwelling units. |

### A. Summary of Request

This request would modify the performance standards for accessory dwelling units and modify requirements that were put in place at the adoption of the 2018 *Zoning Ordinance*.

### B. Plan Consistency

- The “Land Use Strategies” chapter of *plaNorfolk2030* includes an outcome calling for development regulations and practices that support a quality built and natural environment.
  - The proposed text amendments are intended to ensure that this outcome can continue to be met, making the proposal consistent with *plaNorfolk2030*.

### C. Zoning Analysis

- Accessory dwelling units were permitted in their current capacity with the adoption of the 2018 *Zoning Ordinance*.
- An accessory dwelling unit is defined as a secondary dwelling unit established in conjunction with and clearly subordinate to a principal dwelling unit, whether part of the same structure as the principal dwelling unit, or as a detached structure on the same lot, which has a separate kitchen, bathroom, and sleeping area.
- The performance standards adopted in 2018 were conservative to align with similar uses that were permitted by state law (Temporary Health Care Structure).
  - Most notably, the maximum size of accessory dwelling units and the Conditional Use Permit (CUP) requirements have proven to be burdensome for some homeowners.
- As the amount of vacant land in the City of Norfolk has decreased, staff has seen a steady increase of proposals for accessory dwelling units from homeowners.
- Accessory dwelling units allow homeowners a range of benefits, such as being able to age in place or earn additional income while increasing the size of Norfolk’s deficient housing stock. Many of these units are often more affordable than other traditional housing types.
- The proposed changes would not allow accessory dwellings units anywhere they are currently not permitted but would provide a by-right option in zoning districts where the use is currently only permitted with a CUP, and would provide more flexibility in general.

- Accessory dwelling units would have a by-right option in the SF-2, SF-4, SF-6, SF-10, SF-T, R-C, MF-NS, and MF-HR zoning districts.
- The proposed changes include increasing the maximum size of ADUs to 50% of the square footage of the principal dwelling (with a cap at 800 square feet) and removing the surplus parking requirement.
  - Current regulations limit the maximum size of ADUs to 25% of the square footage of the principal dwelling (with a cap at 500 square feet) and require one additional off-street parking space.
- Additionally, staff proposes additional changes that do not change the impact of the use on surrounding properties.
  - Removing the redundant parking arrangement.
  - Removing the utility separation requirements.
  - Allowing property owners to request a CUP to deviate from certain performance standards.
- Carriage houses are not included within the scope of this amendment.
  - Carriage houses are unique to the Coastal Character District and are only permitted within that character district.
  - Carriage houses are a type of accessory dwelling unit but take the form of a second story over a detached garage, which is not permitted typically. In exchange for exceeding the normal height requirements, a carriage house must be built utilizing higher quality materials and is subject to the Coastal Character District Pattern Book.

**D. Mobility Impacts**

N/A

**E. Public Schools Impacts**

N/A

**F. Environmental Impacts**

N/A

**G. AICUZ Impacts**

N/A

**H. Surrounding Area/Site Impacts**

N/A

**I. Payment of Taxes**

N/A

**J. Civic League**

N/A

**K. Communication Outreach/Notification**

Legal notification was placed in *The Virginian-Pilot* on March 13 and March 20.

**L. Recommendation**

Staff recommends that the Zoning Text Amendment request be **approved**.

**Supporting Material:**

- Ordinance Exhibits (A-B) (PDF)
- Proposed Text (DOCX)

By: \_\_\_\_\_  
Office of the City Attorney

By: \_\_\_\_\_  
DEPT. Planning

NORFOLK, VIRGINIA

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## Ordinance No.

AN ORDINANCE TO AMEND TABLE 3.2.12 AND SECTION 4.3.3.E OF THE NORFOLK ZONING ORDINANCE SO AS TO MODIFY AND SIMPLIFY REGULATIONS RELATING TO ACCESSORY DWELLING UNITS.

- - -

BE IT ORDAINED by the Council of the City of Norfolk:

Section 1:- That Table 3.2.12 of the Norfolk Zoning Ordinance, entitled "Principal, Accessory, and Temporary Use Table for Residential Base Zoning Districts," is hereby amended so as to allow the accessory use of "Accessory dwelling unit" in the SF-2 (Single-Family 2), SF-4 (Single-Family 4), SF-6 (Single-Family 6), SF-10 (Single-Family 10), SF-T (Single-Family - Traditional), R-C (Residential - Coastal), MF-NS (Multi-Family Neighborhood-Scale), and MF-HR (Multi-Family High Rise) zoning districts either by right or by conditional use permit, depending on and in accordance with the performance standards set forth in Section 4.3.3.E(1)(a) of the Norfolk Zoning Ordinance. The table shall read as set forth in "Exhibit A," attached hereto.

Section 2:- That Section 4.3.3.E(1)(a) of the Norfolk Zoning Ordinance, defining and creating performance standards for the accessory use of "Accessory dwelling unit", is hereby amended so as to modify and simply the performance standards by allowing the use, by conditional use permit only, on a lot improved with a townhouse or single-family semi-detached dwelling, on a lot that does not meet minimum development standards, or on a lot on which the number of off-street vehicular parking spaces are less than the number required under the regulations of the applicable zoning district; by increasing the area allowed for an accessory dwelling unit constructed, by right, to the lesser of 800 square feet or 50% of the area of the principal dwelling; by removing requirements to use the same utility connections, driveway, and mailbox as the principal dwelling; and by removing a requirement to provide one additional parking space more than required for the principal dwelling. The text shall read as set forth in "Exhibit B," attached hereto.

Section 3:- The Council hereby finds that this zoning

amendment is required by public necessity, convenience, general welfare, or good zoning practice.

Section 4:- That this ordinance shall be in effect from the date of its adoption.

ATTACHMENTS:

Exhibit A - Text amendments to table 3.2.12 (1 page)

Exhibit B - Text amendments to section 4.3.3.E(1)(a) (2 pages)



# Exhibit A

| TABLE 3.2.12: PRINCIPAL, ACCESSORY, AND TEMPORARY USE TABLE FOR RESIDENTIAL BASE ZONING DISTRICTS               |                                              |      |      |      |       |      |     |       |       |       |                       |               |
|-----------------------------------------------------------------------------------------------------------------|----------------------------------------------|------|------|------|-------|------|-----|-------|-------|-------|-----------------------|---------------|
| P = PERMITTED BY RIGHT    C = ALLOWED ONLY WITH APPROVAL OF A CONDITIONAL USE PERMIT<br>BLANK CELL = PROHIBITED |                                              |      |      |      |       |      |     |       |       |       |                       |               |
| USE CATEGORY                                                                                                    | USE TYPE                                     | SF-2 | SF-4 | SF-6 | SF-10 | SF-T | R-C | MF-NS | MF-AC | MF-HR | PERFORMANCE STANDARDS |               |
| ACCESSORY USES                                                                                                  |                                              |      |      |      |       |      |     |       |       |       |                       |               |
| Accessory Uses                                                                                                  | Accessory dwelling unit                      | P/C  | P/C  | P/C  | P/C   | P/C  | P/C | P/C   |       | P/C   | 4.3.3                 | 4.3.3.E(1)(a) |
|                                                                                                                 | Amusement device                             |      |      |      |       |      |     |       | P/C   | P/C   |                       | 4.3.3.E(1)(b) |
|                                                                                                                 | Automated teller machine                     |      |      |      |       |      |     | C     | P     | P     |                       | 4.3.3.E(1)(c) |
|                                                                                                                 | Automatic car wash                           |      |      |      |       |      |     |       |       |       |                       | 4.3.3.E(1)(d) |
|                                                                                                                 | Day care center, adult (as an accessory use) |      |      |      |       |      |     |       |       |       |                       | 4.3.3.E(1)(e) |

# Exhibit B

## ARTICLE 4: PERFORMANCE STANDARDS

### 4.3 PERFORMANCE STANDARDS FOR ACCESSORY USES

#### 4.3.3. PERFORMANCE STANDARDS FOR ALL ACCESSORY USES

##### E. STANDARDS SPECIFIC TO ACCESSORY USES

The uses addressed by the Accessory Uses classification are intended to provide for all of the potential accessory uses that could be located in the city, regardless of the principal use.

##### (1) Definitions and Standards Applicable to Individual Accessory Uses.

##### (a) Accessory dwelling unit

A secondary dwelling unit established in conjunction with and clearly subordinate to a principal dwelling unit, whether part of the same structure as the principal dwelling unit, or as a detached structure on the same lot, which has a separate kitchen, bathroom, and sleeping area. ~~See also Section 5.11.4, Accessory Dwelling Unit, for additional standards applicable to accessory dwelling units.~~

~~(i)~~ A Conditional Use Permit may be approved to authorize the development of an ADU that does not comply with the following performance standards:

~~(A)~~ Subsection (iii)(A), below, limited to a lot improved with a townhouse or a single-family semi-detached dwelling;

~~(B)~~ Subsection (iii)(B), below; or

~~(C)~~ Subsection (vii)(C), below.

~~(ii)(ii)~~ In the R-C district, a Conditional Use Permit may be required as per Section 3.2.8.D(1)(b).

~~(iii)~~ An accessory dwelling unit (ADU) shall be:

~~(A)~~ A accessory only to a single-family detached dwelling; and

~~(A)(B)~~ Located on a lot that complies with the minimum area, dimensional, and lot coverage standards of the base zoning district in which it is located.

~~(ii)(iv)~~ No more than one ADU shall be located on a lot.

~~(iii)~~(v) The property owner shall reside on-site, either in the principal dwelling or in the accessory dwelling unit, during times that the unit is available for rent.

~~(iv)~~(vi) An ADU shall not exceed 500-800 square feet in area or 25-50 percent of the area of the principal dwelling, whichever is less.

~~(v)~~(vii) An ADU shall:

(A) Have the same street address ~~and mailbox~~ as the principal ~~single-family detached~~ dwelling

(B) Not be subdivided or otherwise segregated in ownership from the principal ~~single-family detached~~ dwelling.

~~(C)~~ Use the same water, sanitary sewer, gas, and electric utilities as the principal dwelling.

~~(D)~~ Use the same driveway as the principal dwelling, unless it is accessed from a right-of-way not used by the principal use (e.g., a rear alley or separate street access on a corner or through lot).

~~(E)~~(C) ~~Provide one additional off-street parking space in addition to~~ Only be located on a lot that provides the minimum number of parking spaces required for the principal dwelling.

~~(F)~~(D) Maintain the architectural design, style, appearance and character of the principal dwelling to which it is accessory by incorporating design elements of the principal dwelling like compatible materials, similar façade treatment, colors, window style and treatment, and roof design and pitch.

# ARTICLE 3: ZONING DISTRICTS

## 3.2 RESIDENTIAL BASE ZONING DISTRICTS

### 3.2.12. USES FOR THE RESIDENTIAL BASE ZONING DISTRICT

#### B. USE TABLE FOR USES IN RESIDENTIAL BASE DISTRICTS

| TABLE 3.2.12: PRINCIPAL, ACCESSORY, AND TEMPORARY USE TABLE FOR RESIDENTIAL BASE ZONING DISTRICTS               |                                              |      |      |      |       |      |     |       |       |       |                       |               |
|-----------------------------------------------------------------------------------------------------------------|----------------------------------------------|------|------|------|-------|------|-----|-------|-------|-------|-----------------------|---------------|
| P = PERMITTED BY RIGHT    C = ALLOWED ONLY WITH APPROVAL OF A CONDITIONAL USE PERMIT<br>BLANK CELL = PROHIBITED |                                              |      |      |      |       |      |     |       |       |       |                       |               |
| USE CATEGORY                                                                                                    | USE TYPE                                     | SF-2 | SF-4 | SF-6 | SF-10 | SF-T | R-C | MF-NS | MF-AC | MF-HR | PERFORMANCE STANDARDS |               |
| ACCESSORY USES                                                                                                  |                                              |      |      |      |       |      |     |       |       |       |                       |               |
| Accessory Uses                                                                                                  | Accessory dwelling unit                      | P/C  | P/C  | P/C  | P/C   | P/C  | P/C | P/C   |       | P/C   | 4.3.3                 | 4.3.3.E(1)(a) |
|                                                                                                                 | Amusement device                             |      |      |      |       |      |     |       | P/C   | P/C   |                       | 4.3.3.E(1)(b) |
|                                                                                                                 | Automated teller machine                     |      |      |      |       |      |     | C     | P     | P     |                       | 4.3.3.E(1)(c) |
|                                                                                                                 | Automatic car wash                           |      |      |      |       |      |     |       |       |       |                       | 4.3.3.E(1)(d) |
|                                                                                                                 | Day care center, adult (as an accessory use) |      |      |      |       |      |     |       |       |       |                       | 4.3.3.E(1)(e) |

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The uses addressed by the Accessory Uses classification are intended to provide for all of the potential accessory uses that could be located in the city, regardless of the principal use.

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~~(i)~~ A Conditional Use Permit may be approved to permit an ADU that does not comply with the following:

~~(A)~~ Subsection (iii)(A), below, limited to a townhouse or single-family semi-detached lot;

~~(B)~~ Subsection (iii)(B), below, or;

~~(C)~~ Subsection (vii)(C), below.

~~(ii)(ii)~~ In the R-C district, a Conditional Use Permit may be required as per Section 3.2.8.D(1)(b).

~~(iii)~~ An accessory dwelling unit (ADU) shall be:

~~(A)~~ Accessory only to a single-family detached dwelling; and

~~(ii)(B)~~ Located on a lot that complies with the minimum area, dimensional, and lot coverage standards of the base zoning district in which it is located.

~~(iii)(iv)~~ No more than one ADU shall be located on a lot.

~~(iv)(v)~~ The property owner shall reside on-site, either in the principal dwelling or in the accessory dwelling unit, during times that the unit is available for rent.

~~(v)(vi)~~ An ADU shall not exceed 500-800 square feet in area or 25-50 percent of the area of the principal dwelling, whichever is less.

~~(vi)(vii)~~ An ADU shall:

- (A) Have the same street address ~~and mailbox~~ as the principal ~~single-family detached~~ dwelling
- (B) Not be subdivided or otherwise segregated in ownership from the principal ~~single-family detached~~ dwelling.
- ~~(C) Use the same water, sanitary sewer, gas, and electric utilities as the principal dwelling.~~
- ~~(D) Use the same driveway as the principal dwelling, unless it is accessed from a right-of-way not used by the principal use (e.g., a rear alley or separate street access on a corner or through lot).~~
- ~~(E)~~(C) \_\_\_\_\_ Provide one additional off-street parking space in addition to Only be located on a lot that provides the minimum number of parking spaces required for the principal dwelling.
- ~~(F)~~(D) \_\_\_\_\_ Maintain the architectural design, style, appearance and character of the principal dwelling to which it is accessory by incorporating design elements of the principal dwelling like compatible materials, similar façade treatment, colors, window style and treatment, and roof design and pitch.